

BUTTS v FCA US LLC, et al

25CV47877

**PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES
AND FOR SANCTIONS**

The Motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motions are **DENIED, without prejudice to refile.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

PLAINTIFF'S MOTION TO QUASH; DEFENDANTS' MOTION TO COMPEL EXPERT DEPOSITION

This matter involves a dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") Before the Court is the motion to compel the deposition of an expert witness filed Defendants Lakeside Ventures, LLC and Bonnie K. Tuckerman-Aho (Hurley) ("Defendants.")

Simultaneously, Plaintiff has filed her own motion to quash Requests for Production of Documents ("RFP"), request for protective order, and request to have deposition relocated. Although **plaintiff has AGAIN FAILED to use the mandatory notice language of Local Rule 3.3.7** which normally would lead to a summary denial of her motion, as these issues overlap and defendants included the language, the Court will rule on the substantive merits of both motions.

I. Relevant Background

Plaintiff's motion is unclear. By reference to the opposition, the Court was able to ascertain the issues being raised by Plaintiff.

On January 5, 2026, Defendants served Plaintiff with a notice of deposition. (Declaration of Kathleen E. Finnerty ("Finnerty Decl.") ¶ 9, Ex. B.) Plaintiff's deposition was noticed for January 16, 2026. (*Ibid.*) The notice also contained a RFP seeking 44 individual productions of documents. (*Ibid.*)

Plaintiff's motion to quash – better labeled as a motion for protective order -- relates to those 44 RFPs which Plaintiff argues are identical in nature to RFPs served on her by former Defendant David Tuckerman in 2023. (Finnerty Decl. ¶ 3; Mtn to Quash pp. 2-3.) Plaintiff argues that the new RFPs are duplicative of earlier ones served by another party and that the documents are equally available to the requesting Defendants.